

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr.MMO No. 134 of 2025

Decided on : 07.08.2025

Talib Hussain

...Petitioner

Versus

State of H.P. & Ors.

...Respondents

Coram

The Hon'ble Mr. Justice Virender Singh, Judge.

Whether approved for reporting?¹

For the petitioner : Mr. Aasheesh Patial, Advocate.

For the respondents : Mr. Tejasvi Sharma and Mr. Mohinder Zharaick, Additional Advocates General with Ms. Ranjna Patial, Deputy Advocate General, for the respondents No. 1 and 2/State.

Mr. Janesh Mahajan, Advocate for the respondent No. 3.

Virender Singh, Judge

Respondent No.3-CBI, has filed reply to the petition, para 2 of which, is reproduced, as under:-

That in reply to the averments made in para 03 of petition, it is submitted that the

petitioner has claimed that the case against him is weak without mentioning his role in this Para and requested for quashing the FIR No. 10(S)2022/CBI/SCB/Chandigarh. It is further submitted that the petitioner is an accused in FIR No. 05 of CID Shimla in which charge sheet have been filed however, the petitioner has been arrayed as witness in the list of witness in CBI case.”

In view of the said stand of respondent No.3-CBI, learned counsel for the petitioner, seeks permission to withdraw the present petition, with liberty, to approach, this Court again, in case, need so arises, in future. Leave and liberty, as sought, is granted. The petition is accordingly dismissed as withdrawn, so also the pending miscellaneous application.

(Virender Singh)
Judge

August 07, 2025
(Pramod)